



CHAPTER ccxlviii.

An Act to constitute and incorporate a Joint Board A.D. 1903.
consisting of representatives of the urban district councils
of Abercarn Abertillery Ebbw Vale Nantyglo and Blaina
and Risca all in the county of Monmouth and to authorise
the Board to construct main trunk sewers and other works
for the disposal of the sewage of such districts and for
other purposes. [14th August 1903.]

WHEREAS the urban districts of Abercarn Abertillery Ebbw
Vale Nantyglo and Blaina and Risca all in the county of
Monmouth are under the management and local government of the
respective urban district councils of Abercarn Abertillery Ebbw
Vale Nantyglo and Blaina and Risca :

And whereas the whole of the said urban districts are situate
upon the watershed of and drain into the River Ebbw or the
tributaries thereof :

And whereas the parish of Rogerstone is situate in the rural
district of St. Mellons in the county aforesaid and is under the
management and local government of the St. Mellons Rural District
Council and is also situate upon the watershed of and drains into
the River Ebbw or the tributaries thereof below the urban districts
aforesaid :

And whereas the arrangements in regard to sewerage and
drainage in the said urban districts and in the said parish are of a
most unsatisfactory character and the polluted and filthy condition
of the River Ebbw and its tributaries resulting therefrom is
injurious or prejudicial to public health and urgently requires
improvement :

And whereas for preventing the increasing pollution of the
Ebbw River and its tributaries it is expedient to constitute and

A.D. 1903. — incorporate a Board as by this Act provided representing the urban district councils of Abercarn Abertillery Ebbw Vale Nantyglo and Blaina and Risca and to authorise such Board to construct main trunk sewers and other works for the effectual sewerage of the urban districts and of the parish aforesaid :

And whereas the urban district councils of Abercarn Abertillery Ebbw Vale and Risca have agreed and concurred in obtaining this Act and notwithstanding the urban district council of Nantyglo and Blaina has refused to concur and agree with the other councils aforesaid it is expedient in the interests of the whole of the said districts and of public health that the urban district council of Nantyglo and Blaina whose district is situate above the urban districts of Abertillery Abercarn and Risca should become subject to the provisions of this Act and a constituent authority as hereinafter provided of the Board hereby constituted and incorporated as aforesaid :

And whereas it is expedient that the St. Mellons Rural District Council should in respect of the use by them of the main trunk sewers and other works for the effectual sewerage of the portion of the parish of Rogerstone hereinafter defined make the payments or contributions to the expenses of the Board as hereinafter provided :

And whereas it is expedient that the Board constituted by this Act should be empowered to borrow moneys for the construction of the works by this Act authorised and otherwise for the purposes of this Act :

And whereas estimates have been prepared of the sums necessary for the purchase of lands and easements and for the execution of the various works by this Act authorised and such estimates amount to the sum of two hundred and thirty-seven thousand five hundred pounds :

And whereas the works included in such estimates are permanent works within the meaning of section 234 of the Public Health Act 1875 :

And whereas an absolute majority of the whole number of the respective councils of the urban districts of Abercarn Abertillery Ebbw Vale and Risca at meetings of those bodies respectively held as to the council of the urban district of Abercarn on the fourteenth day of October as to the council of the urban district of Abertillery on the twentieth day of October as to the council of the urban district of Ebbw Vale on the sixteenth day of October and as to the council of the urban district of Risca on the twenty-ninth day of October all in the year one thousand nine hundred and two after

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ten clear days' notice by public advertisement of such meetings respectively and of the purposes thereof as to the meeting of the said council of the urban district of Abercarn in the South Wales Argus being a local newspaper published or circulating in the said urban district of Abercarn as to the meeting of the said council of the urban district of Abertillery in the said South Wales Argus being a local newspaper published or circulating in the said urban district of Abertillery as to the meeting of the said council of the urban district of Ebbw Vale in the South Wales Daily News being a local newspaper published or circulating in the said urban district of Ebbw Vale and as to the meeting of the said council of the urban district of Risca in the South Wales Gazette being a local newspaper published or circulating in the said urban district of Risca such notices being in addition to the ordinary notices required for summoning such meetings resolved that it was expedient to promote the Bill for this Act:

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And whereas such resolution of the said council of the urban district of Abercarn was published twice in the said South Wales Argus the said resolution of the said council of the urban district of Abertillery was published twice in the said South Wales Gazette the said resolution of the said council of the urban district of Ebbw Vale was published twice in the said South Wales Argus and the said resolution of the said council of the urban district of Risca was published twice in the said South Wales Gazette and all the said resolutions have received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the said councils of the said respective urban districts at further special meetings held in pursuance of similar notices as to the council of the urban district of Abercarn on the twentieth day of January as to the council of the urban district of Abertillery on the twelfth day of January as to the council of the urban district of Ebbw Vale on the twenty-third day of January and as to the council of the urban district of Risca on the twentieth day of January all in the year one thousand nine hundred and three being in each case not less than fourteen days after the deposit of the Bill in Parliament:

And whereas the owners and ratepayers of the said urban districts respectively by resolution in the manner provided in the Third Schedule to the Public Health Act 1875 have consented to the promotion of the Bill for this Act:

A.D. 1903.

And whereas plans showing the lands proposed to be acquired and the works proposed to be constructed under this Act and sections of the said works and books of reference to such plans were duly deposited with the clerk of the peace for the county of Monmouth which plans sections and books of reference are in this Act respectively referred to as "the deposited plans sections and books of reference":

And whereas the objects of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Western Valleys (Monmouthshire) Sewerage Board Act 1903.

Division of Act into parts.

2. This Act is divided into parts as follows:—

Part I.—Preliminary.

Part II.—Constitution of the Board.

Part III.—Works and Lands.

Part IV.—Financial Provisions.

Part V.—Miscellaneous.

Incorporation of Acts.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act:—

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845):

The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof And in such provisions for the purposes of this Act "the railway" means the intercepting connecting and outfall sewers by this Act authorised and "the centre of the railway" means the centre of such sewers.

Application of provisions of Public Health Acts.

4. For the purposes of this Act the following sections of the Public Health Act 1875 the Public Health Act 1875 (Support of Sewers) Amendment Act 1883 the Public Health (Officers) Act

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1884 and the Public Health (Members and Officers) Act 1885 A.D. 1903.
shall apply and the Board shall for the purposes of this Act have
exercise perform and be subject to all the powers rights duties
capacities liabilities and obligations of an urban sanitary authority
under the said sections so far as the same are applicable (that is
to say) :—

Of the Public Health Act 1875—

Sections 14 to 20 and 26 to 34 all inclusive as to sewerage
and drainage save that sections 32 to 34 inclusive shall
not apply to the sewers (Conduits Nos. 1 to 6) authorised
by Part III. of this Act :

Section 153 as to removal of gas and water pipes :

Sections 173 and 174 relating to contracts :

Sections 179 to 181 relating to arbitration :

Section 192 (except as regards the inspector of nuisances)
sections 193 to 197 (both inclusive) and sections 205 and
206 (except so much of section 206 as requires the
publication in a local newspaper of the annual report)
relating to officers and conduct of business of local
authorities :

Sections 245 247 (as amended by the District Auditors Act
1879 and by section 58 of the Local Government Act
1894) 249 and 250 relating to audit :

Sections 251 253 and 254 and sections 258 to 263 (both
inclusive) and sections 265 266 and 267 and section 269
as amended by the Summary Jurisdiction Act 1884
relating to legal proceedings :

Section 285 relating to the execution of works in adjoining
districts (save as to the works authorised by Part III. of
this Act) and combination for execution of works :

Sections 297 and 298 as to Provisional Orders :

Sections 299 (except so far as relates to water supply)
300 301 and 302 relating to defaulting local authorities :

Section 303 relating to the granting of Provisional Orders
for the repeal alteration or amendment of Local Acts :

Sections 306 to 309 both inclusive relating to miscellaneous
provisions :

Of the Public Health Act 1875 (Support of Sewers) Amend-
ment Act 1883 Sections 3 4 and 5 :

Of the Public Health (Officers) Act 1884 Section 2 :

Of the Public Health (Members and Officers) Act 1885
Section 2 :

A.D. 1903. — And in the construction of the above-mentioned enactments the districts of the urban district councils shall be deemed to be the district of a local authority and the Board to be the local authority for such district Provided that nothing in this Act contained shall affect the powers of any constituent authority with reference to sewers other than the main trunk or outfall sewers and other works by this Act authorised or to any other works required for the sewerage of any of the constituent districts and not for that of any other of the constituent districts.

The powers by this section conferred upon the Board shall be in addition to and not in derogation from the powers conferred by other sections of this Act.

Interpreta-
tion.

5. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction Provided that—

“The undertakers” or “the company” means the Board:
And in this Act unless the context otherwise requires—

“The district funds” and “general district rates” mean respectively the several district funds and general district rates of the urban districts of Abercarn Abertillery Ebbw Vale Nantyglo and Blaina and Risca;

“The urban district councils” mean the urban district council of Abercarn the urban district council of Abertillery the urban district council of Ebbw Vale the urban district council of Nantyglo and Blaina and the urban district council of Risca;

“The rural district council” means the rural district council of St. Mellons;

“The Board” means the Western Valleys (Monmouthshire) Sewerage Board incorporated by this Act;

“Clerk” means the clerk to the Board;

“Constituent authority” means any one of the urban district councils;

“Constituent district” means any one of the districts of the urban district councils;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock

or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 other than securities of the Board or the respective corporations and annuities rentcharges and securities transferable by delivery. A.D. 1903.

PART II.

CONSTITUTION OF THE BOARD.

6. For the purposes of this Act there shall be a Board consisting of representatives of the urban district councils of Abercarn Abertillery Ebbw Vale Nantyglo and Blaina and Risca all in the county of Monmouth. Board constituted.

7. The Board shall be called "The Western Valleys (Monmouthshire) Sewerage Board" and by that name the members for the time being of the Board shall be a body corporate with perpetual succession and a common seal and with power to hold and dispose of lands without any licence in mortmain. Incorporation of Board.

8. The Board shall consist of twenty-one members of whom three shall represent and be members of the Abercarn Council six shall represent and be members of the Abertillery Council five shall represent and be members of the Ebbw Vale Council four shall represent and be members of the Nantyglo and Blaina Council and three shall represent and be members of the Risca Council The said councils are hereinafter collectively referred to as "the constituent authorities" and separately as "the constituent authority." Constitution of Board.

The first members of the Board representing each of the constituent authorities shall be appointed by that authority as soon as conveniently may be after the passing of this Act and shall hold office until the fifteenth day of April 1906 or until such earlier date as they may cease to be members of the constituent authority by which they were respectively appointed or may otherwise become disqualified.

Subsequent members of the Board representing each of the constituent authorities shall be appointed by that authority during the month of April or so soon thereafter as may be practicable in the year 1906 and in each third successive year thereafter and shall hold office for a period of three years or until such earlier date

A.D. 1903. — as they may cease to be members of the constituent authority by which they were respectively appointed or may otherwise become disqualified.

Any member of the Board who ceases to hold office by reason of the expiration of his period of office or by reason of his resignation or disqualification or ceasing to be a member of such constituent authority shall subject to the provisions of the section of this Act whereof the marginal note is "Disqualifications" be re-eligible as a member of the Board if at the time of re-appointment he is qualified to be appointed.

Provisions where failure to appoint members.

9. If any constituent authority fail to appoint first members of the Board as by this Act provided it shall be competent nevertheless for the other members of the Board to carry this Act into execution and if any constituent authority fail to appoint members of the Board at any subsequent period the then existing members of the Board representing such authority shall continue in office till their successors are appointed.

Certificate of appointment of members of Board.

10. A certificate under the hand of the clerk of the constituent authority of appointment as member of the Board shall be conclusive evidence of the appointment. Every such certificate shall immediately after such appointment be delivered or sent by registered letter addressed prior to the appointment of a clerk to the board to the clerks of each of the constituent authorities and after his appointment to the clerk to the Board.

Members of Board to vacate office on ceasing to be members of constituent authority appointing them.

11. If any member of the Board ceases to be a member of the constituent authority which he represents he shall ipso facto cease to be a member of the Board.

Resignation of members of Board.

12. Any member of the Board may at any time resign his office as such member at any meeting of the Board or by writing addressed to the clerk of the Board.

Disqualifications.

13. Such of the provisions of section 46 of the Local Government Act 1894 as relate to members of councils and districts other than boroughs shall mutatis mutandis apply to the members of the Board.

Casual vacancies.

14. Any casual vacancy in the Board occurring by death resignation or otherwise shall be filled up by the constituent authority by whom the vacating member was originally appointed as soon as reasonably practicable after the occurrence of the vacancy but a member so appointed shall retain his office so long only as the vacating member would have retained the same if no vacancy had occurred.

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15. No act of the Board shall be invalid or illegal by reason only of any vacancy in the Board or of any irregularity in the appointment of any member of any one of the constituent authorities or in the appointment of any member of the Board or of any person not qualified or ceasing to be qualified acting as a member of the Board.

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 Acts of Board not to be invalidated.

16. The first meeting of the Board shall be held at the council offices Abercarn on the sixth Wednesday after the passing of this Act at the hour of 3.45 o'clock and notice of such meeting signed by the clerk of the urban district council of Abercarn shall be sent to every member of the Board. The other meetings of the Board shall be held at such times as the Board shall appoint and at the same place unless the Board shall otherwise determine.

First meeting of Board.

17.—(1) The chairman may at any time call an extraordinary meeting. If the chairman refuses to call a meeting after a requisition for that purpose signed by three members of the Board has been presented to him any three members of the Board may forthwith on that refusal call a meeting. If the chairman (without so refusing) does not within seven days after such presentation call a meeting any three members of the Board may on the expiration of those seven days call a meeting.

Other meetings.

(2) Such notice shall be given to the members of the Board of the holding of a meeting of the Board as the Board from time to time by resolution determine.

18. The quorum at all meetings of the Board from time to time shall be seven. In the event of a quorum not being present at the time appointed for any meeting of the Board or within half an hour thereafter the meeting shall stand adjourned until that day week at the same hour and place as that appointed for the meeting so adjourned.

Quorum of Board.

19. At their first meeting and subsequently at a meeting to be held in April in each year the Board shall appoint one of their number to be chairman and another to be vice-chairman of the Board for the ensuing year provided that the chairman and vice-chairman shall at no time be chosen from the members representing the same constituent authority.

Board to appoint chairman &c.

At all meetings of the Board the chairman or in his absence the vice-chairman or in the absence of both the chairman and the vice-chairman some member of the Board chosen by the members present shall preside.

A.D. 1903. In the event of the death or permanent incapacity or resignation in writing of the chairman or vice-chairman the Board shall appoint one of their members to fill the vacancy.

Minutes. **20.** Minutes of the proceedings of every meeting shall be drawn up and fairly entered in a book kept for that purpose and shall be signed by the chairman of the meeting or of the next ensuing meeting.

Standing orders. **21.** Subject to the provisions of this Act the Board may make standing orders for the regulation of their proceedings and business and vary or revoke the same.

Committees. **22.** The Board may appoint committees consisting of members of the Board for the exercise of any powers which in the opinion of the Board can be properly exercised by committees but the acts of every such committee shall unless otherwise directed by the Board be submitted to the Board for approval. Provided that a committee so appointed shall in no case be authorised to borrow money or to issue any precept for contributions or to enter into any contract and any such committee shall be subject to the provisions of Part IV. of the First Schedule to the Local Government Act 1894 as far as they are applicable.

Power to appoint officers. **23.** The Board may appoint pay and remove a clerk and treasurer and such other officers and servants as they may see fit.

Accounts yearly balance-sheets &c. **24.** The Board shall cause proper books of account and other books in relation thereto to be kept and shall prepare yearly balance sheets to the thirty-first day of March in each year showing in all necessary detail the receipts and expenditure of the Board and shall report the same to each of the constituent authorities on or before the next ensuing twenty-fourth day of June.

Question to be decided by majority of votes. **25.** Subject as in this Act provided all questions arising at a meeting of the Board or of any Committee thereof shall be decided by a majority of the members present at the meeting and in the case of an equality of votes the chairman of the meeting shall have a second or casting vote.

Arbitration. **26.** If at any time any difference arises between the Board and any of the constituent authorities respecting any matter arising out of the provisions of this Act the same shall be referred to and be settled by the Local Government Board or by an arbitrator appointed by them and the cost of the reference shall be in the discretion of the Local Government Board or of the arbitrator as the case may be.

27. If at any time any new urban district is formed including the whole or any part of any of the constituent districts or of the rural district of St. Mellons or the boundaries of any of the constituent districts or of the said rural district are otherwise altered or the whole or any part of them is created or included in a municipal borough then and in every such case the Local Government Board may by order to be published as they shall direct make such provision as to them seems fit for adapting the provisions of this Act to the alterations so made and to the incidents and consequences thereof and every such order shall have effect as if the terms thereof were inserted in this Act.

A.D. 1903.
 Provisions
 in event of
 alterations
 of urban
 districts.

28. On the application of any of the constituent authorities the Local Government Board may after inquiry and prior notice thereof to the constituent authorities by order alter the number and proportion of members to be appointed by the constituent authorities and may make any provisions incident to or consequential on such alteration including an alteration in the number of members to form a quorum.

Power to
 alter num-
 ber of
 members.

29. For the purpose of enabling the Board to dispose of the sewage of any borough or district other than one of the constituent districts the Board may with the consent of the Local Government Board agree to allow the sewers of the council of any borough or district to communicate either directly or indirectly with the sewers vested in or under the control of the Board but such agreement and communication shall be subject to the consent of the council through whose sewers any such indirect communication with the sewers of the Board is effected.

Agreements
 between
 Board and
 district coun-
 cils other
 than con-
 stituent
 authorities
 as to com-
 municating
 with sewers
 of Board.

PART III.

WORKS AND LANDS.

30. Subject to the provisions of this Act the Board may enter upon take and use all or any of the lands delineated upon the deposited plans and described in the deposited books of reference and may make maintain and work in and according to the lines situations and levels shown on the deposited plans and sections the sewerage works and sewage outfall works hereinafter described together with all necessary and proper intakes outfalls overflows sewers drains channels weirs sluices junctions syphons engines pumps boilers machinery culverts shafts tanks reservoirs manholes

Power to
 make sewer-
 age and
 sewage out-
 fall works.

A.D. 1903. works buildings storage and subsidiary sewers and conveniences connected therewith (that is to say) :—

- (1) An intercepting sewer (Conduit No. 1) situate in the parish of Aberystroth in the urban district of Nantyglo and Blaina and in the parishes of Abertillery and Llanhilleth in the urban district of Abertillery all in the county of Monmouth commencing in the said parish of Aberystroth at a point 2 chains or thereabouts west from the junction of the roads in Lion Street and 4·50 chains or thereabouts measured in a north-easterly direction from the north-east corner of Forge Row and terminating at Aberbeeg in the said parish of Abertillery at a point in and at the side of the River Ebbw Fach 1·80 chains or thereabouts measured in a south-westerly direction from the south-east corner of the Hanbury Arms Hotel by a junction with the intended intercepting sewer (Conduit No. 3) :
- (2) An intercepting sewer (Conduit No. 2) situate in the parishes of Beaufort Rassa and Ebbw Vale in the urban district of Ebbw Vale in the county of Monmouth and in the parish and urban district of Abertillery in the same county commencing in the said parish of Beaufort at a point 0·80 chain or thereabouts measured in a westerly direction from the south-west corner of St. Andrew's church and terminating at Aberbeeg in the said parish of Abertillery by a junction with the intended intercepting sewer (Conduit No. 1) :
- (3) An intercepting sewer (Conduit No. 3) situate in the parishes of Abertillery and Llanhilleth in the urban district of Abertillery and the parish and urban district of Abercarn and the parish and urban district of Risca and the parishes of Rogerstone Graig and Duffryn in the rural district of St. Mellons all in the said county of Monmouth commencing at Aberbeeg in the said parish of Llanhilleth by a junction with the said intended intercepting sewers (Conduits Nos. 1 and 2) and terminating in the said parish of Duffryn in Percoed Lane at a point 13·50 chains or thereabouts south-west of the junction of Green Lane with Percoed Lane by a junction with the intended outfall sewer (Conduit No. 6) :
- (4) A connecting sewer (Conduit No. 4) wholly situate in the said parish and urban district of Abertillery commencing at a point 1 chain or thereabouts measured in a south-westerly

direction from the south-west corner of Brookside Row and terminating at a point in and at the side of the Ebbw Fach River 7 chains or thereabouts measured in a westerly direction from the south-west corner of the Bush Hotel by a junction with the intended intercepting sewer (Conduit No. 1) : A.D. 1903.

(5) A connecting sewer (Conduit No. 5) situate in the parish and urban district of Risca in the county of Monmouth commencing in the field numbered 479 on the $\frac{1}{2500}$ Ordnance map (1901) at a point 4·30 chains or thereabouts measured in a north-westerly direction from the south-west corner of the buildings at Nine Mile Point Railway Station and terminating in the said parish of Risca in the field numbered 470 on the $\frac{1}{2500}$ Ordnance map (1901) by a junction with the intended intercepting sewer (Conduit No. 3) :

(6) An outfall sewer (Conduit No. 6) situate wholly in the parish of St. Bride's in the rural district of St. Mellons commencing by a junction with the intended intercepting sewer (Conduit No. 3) in Percoed Lane 13·50 chains or thereabouts south-west of the junction of Green Lane with Percoed Lane and notwithstanding anything shown on the deposited plans and sections or on the plans and sections referred to in the section of this Act whereof the marginal note is "For protection of Lord Tredegar" terminating in the bed of the sea at low-water mark of ordinary tides near the sea boundary of the said parish of St. Bride's in the said rural district of St. Mellons in the county of Monmouth at a point 125 chains or thereabouts measured in a southerly direction from the south-west corner of St. Bride's Church and 103 chains or thereabouts measured in a southeasterly direction from the south-westerly corner of the building being part of Walnut Tree Farm all in the said rural district of St. Mellons in the county of Monmouth and in the bed of the sea adjoining the said parish of St. Bride's.

31. Subject to the provisions of this Act the Board may within the limits of deviation shown on the deposited plans and sections make and maintain all such approaches retaining walls piers abutments embankments girders cantilevers bridges arches subsidiary and surface water sewers drains joists culverts penstocks excavations manholes ventilators flushing stations lampholes shafts tanks goits overflows and other works and conveniences Power to make general works.

A.D. 1903. connected with the sewerage and sewage outfall works by this Act authorised as they may deem necessary.

Power to deviate.

32. In constructing the works authorised by the provisions of this part of this Act the Board may deviate from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and from the levels thereof as shown on the deposited sections to any extent not exceeding five feet upwards and to any extent downwards Provided that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade.

No works below low-water mark.

33. Notwithstanding anything in this Act or shown on the deposited plans and sections or the amended plan and section referred to in the section of this Act of which the marginal note is "For protection of Lord Tredegar" no works shall be constructed seaward of low-water mark.

Alteration of position of mains and pipes.

34. Subject to the other provisions of this Act the Board may for the purposes of and in connection with the several works authorised by this Act and within the limits of deviation of such works as shown on the deposited plans raise sink or otherwise alter the position of any sewer or drain gas and water main or pipe and may remove any other obstruction making in case of alterations proper substituted works in the meantime and causing as little detriment and inconvenience as circumstances admit and making compensation to any person who suffers damage by any such alteration Provided that nothing in this section shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former of such Acts apply Provided that the Board shall not alter or remove or in any way interfere with any telegraphic telephonic or electric cables wires tubes or apparatus of the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

For protection of corporation of Newport.

35. For the protection of the mayor aldermen and burgesses of the county borough of Newport in the county of Monmouth (in this section called "the corporation") the following provisions shall have effect except so far as the corporation and the Board may otherwise agree (that is to say) :—

- (1) The Board shall not raise sink or otherwise interfere with any water mains or pipes or other works connected therewith belonging to the corporation except where necessary so to do :

(2) Seven days before commencing the construction of any works within ten yards of any such main pipe or work of the corporation the Board shall deliver to the corporation a plan and section of the works proposed to be constructed and the corporation shall be entitled to superintend the construction of such works and the Board shall in the construction of such works conform with all reasonable requirements which may be made by the corporation for supporting and protecting from injury such main pipe or other work and for securing access thereto: A.D. 1903.

(3) All costs charges and expenses reasonably incurred by the corporation or their engineer in relation to any superintendence or watching by the corporation or their engineer or officers of any works by this Act authorised by which any water main pipe or work of the corporation may be affected shall be paid by the Board to the corporation on demand:

(4) The Board shall make good all damage done to any such main pipe or other work of the corporation and if any interruption whatsoever in the supply of water by the corporation shall be occasioned by the Board or by the act of any of their contractors agents workmen or servants or any person in the employ of them during the construction or subsequent maintenance of the works of the Board the Board shall indemnify and compensate the corporation in respect of all damage or loss which they may sustain by reason or in consequence of such interruption:

(5) If any difference arise between the corporation and the Board touching this section or anything to be done or not to be done or any moneys to be paid thereunder such difference shall be determined by arbitration by an engineer to be appointed (unless otherwise agreed on between the parties) on the application of either party by the President of the Institution of Civil Engineers.

36. The Board shall before commencing to break up any public road in the rural district of St. Mellons give fourteen days' notice to the rural district council and shall open and break up the road and restore the same to the satisfaction and under the supervision of the surveyor to the rural district council Provided that if the surveyor shall fail to give such supervision the Board may execute the work without his supervision.

As to breaking up of roads in St. Mellons Rural District.

A.D. 1903.

Sewage may
be dis-
charged into
Rivers Ebbw
and Sirhowy
during floods
&c.

37. Subject to the provisions of this Act the Board shall during times when the flow through the sewers at any point exceeds in quantity the rate of flow of 120 gallons a day per head of the population of the constituent districts or after previous notice in writing to the Board of Conservators of the Usk and Ebbw Fishery District may during the time when the sewers and works authorised by this Act or any part of them are being repaired cleansed altered or renewed or are stopped up or interfered with by any accident discharge the contents of such sewers and works or part thereof into the Rivers Ebbw and Sirhowy and their respective tributaries.

Breaking up
of roads and
streets.

38. For the purpose of making or maintaining any of the works by this Act authorised the Board may open and break up any public road in under across or over which any of such works are authorised to be constructed Provided that where they open or break up any such road they shall be subject to the following obligations :—

(1) They shall with all convenient speed complete the work on account of which they open or break up the road and subject to the making and maintenance of the said work fill in the ground and make good the surface and restore the portion of the road to as good a condition as that in which it was opened or broken up and clear away all surplus paving or metalling material or rubbish occasioned thereby :

(2) They shall in the meantime cause the place where the road is opened or broken up to be fenced and watched and to be properly lighted at night.

Temporary
stoppage of
streets.

39. The council during the execution and for the purposes of any works by this Act authorised may break up and also temporarily stop up divert and interfere with any street and may for any reasonable time prevent all persons other than those bonâ fide going to or returning from any house in the street from passing along and using the same The Board shall provide reasonable access for persons bonâ fide going to or returning from any such house.

Board em-
powered or
may be
required to
underpin or
otherwise
strengthen

40. And whereas in order to avoid in the execution and maintenance of any works authorised by this Act injury to the houses and buildings within one hundred feet of any of the works by this Act authorised it may be necessary to underpin or otherwise strengthen the same Therefore the Board at their costs

and charges may and if required by the owners and lessees of any such house or buildings shall subject as hereinafter provided underpin or otherwise strengthen the same and the following provisions shall have effect (that is to say) :—

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houses near
works.

- (1) At least one calendar month's notice shall unless in case of emergency be given to the owners lessees and occupiers or by the owners or lessees of the house or buildings so intended or so required to be underpinned or otherwise strengthened :
- (2) Each such notice if given by the Board shall be served in manner prescribed by section 19 of the Lands Clauses Consolidation Act 1845 and if given by the owners or lessees of the premises to be underpinned or strengthened shall be sent to the clerk :
- (3) If any owner lessee or occupier of any such house or buildings or the Board as the case may require shall within twenty-one days after the giving of such notice give a counter notice in writing that he or they as the case may be disputes the necessity of such underpinning or strengthening the question of the necessity shall be referred to the arbitration of an engineer to be agreed upon or in case of difference to be appointed at the instance of either party by the Board of Trade :
- (4) Such referee shall forthwith upon the application of either party proceed to inspect such house or building and determine the matter referred to him and in the event of his deciding that such underpinning or strengthening is necessary he may and if so required by such owner lessee or occupier shall prescribe the mode in which the same shall be executed and the council may and shall proceed forthwith so to underpin or strengthen the said house or building :
- (5) The council shall be liable to compensate the owners lessees and occupiers of every such house or buildings for any inconvenience loss or damage which may result to them by reason of the exercise of the powers granted by this enactment :
- (6) If in any case in which any house or buildings shall have been underpinned or strengthened on the requisition of the council such underpinning or strengthening shall prove inadequate for the support or protection of the house or building against further injury arising from the execution or use of the works of the council then and in every such

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case the council shall make compensation to the owners lessees and occupiers of such house or building for such injury provided the claim for compensation in respect thereof be made by such owners within twelve months and by such lessees or occupiers within six months from the discovery thereof :

- (7) Nothing in this enactment contained nor any dealing with any property in pursuance of this enactment shall relieve the council from the liability to compensate under section 68 of the Lands Clauses Consolidation Act 1845 or under any other Act :
- (8) Every case of compensation to be ascertained under this enactment shall be ascertained according to the provisions of the Lands Clauses Acts :
- (9) Nothing in this section shall repeal or affect the application of section 92 of the Lands Clauses Consolidation Act 1845.

Power to
dredge &c.

41. In connection with the construction of the outfall sewer (Conduit No. 6) by this Act authorised the Board may with the consent in writing of the Right Honourable Godfrey Charles Lord Tredegar or other the lord for the time being of the manor or lordship of Wentlooge and of the Board of Trade dredge scour deepen or alter so much of the bed of the sea and the foreshore thereof as may be necessary for the purposes of the construction or maintenance of the said outfall sewer and of the works and conveniences connected therewith :

Provided as follows :—

- (1) Any materials excavated or dredged under the powers of this Act may be appropriated and used by the Board in the construction of any of the works authorised by this Act but as to such materials as shall not be used by the Board as aforesaid if deposited on the sea shore or to the seaward thereof below high-water mark shall only be deposited in such positions and under such restrictions and regulations as may be fixed by the Board of Trade ;
- (2) Such dredging scouring and deepening aforesaid shall be restricted to the area laid down and shown on a plan to be previously approved by the Board of Trade.

Period for
completion
of works.

42. Subject to the other provisions of this Act if the works authorised by this Act are not completed within seven years from

the passing of this Act then on the expiration of that period the powers by this Act granted for the making thereof or otherwise in relation thereto shall cease except as to such of them or so much thereof respectively as is then completed. Provided that the Board may subject to the consent and approval of the Local Government Board which consent and approval that Board is hereby authorised to give construct subject to the provisions of this Act such improvements and alterations of the works constructed under the provisions of this Act as they from time to time deem necessary.

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43.—(1) Subject to the provisions of the section of this Act whereof the marginal note is “Works below high-water mark not to be commenced without consent of Board of Trade” and to the requirements of the Board of Trade under that section such part of the outfall sewer (Conduit No. 6) by this Act authorised as is situate between the sea wall and the termination of the said conduit shall be so constructed that the crown or upper portion of the conduit or pipe conveying the sewage to the outfall or of any works connected therewith shall not be less than four feet below the level of the mud at the time of construction of such sewer.

For protec-
tion of navi-
gation.

(2) The Board shall place and maintain to the satisfaction of the Board of Trade a lighted buoy to indicate the point of termination of the said outfall sewer.

44. During the construction of any works below high-water mark of ordinary spring tides the Board shall buoy and light the same to the satisfaction of the Board of Trade.

Works to
be lighted
during con-
struction.

45. The Board shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and re-flows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Board shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this Act the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Board and the

Works
below high-
water mark
not to be
commenced
without
consent of
Board of
Trade.

A.D. 1903. — amount of such costs and charges shall be a debt due from the Board to the Crown and shall be recoverable as a Crown debt or summarily.

Survey of
works by
Board of
Trade.

46. If at any time the Board of Trade deems it expedient for the purposes of this Act to order a survey and examination of a work constructed by the Board on in over through or across tidal lands or tidal water or of the intended site of any such work the Board shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Board to the Crown and be recoverable as a Crown debt or summarily.

Abatement
of works
abandoned
or decayed.

47. If a work constructed by the Board on in over through or across tidal lands or tidal water is abandoned or suffered to fall into decay the Board of Trade may abate and remove the work or any part of it and restore the site thereof to its former condition at the expense of the Board and the amount of such expense shall be a debt due from the Board to the Crown and be recoverable as a Crown debt or summarily.

Time of
discharge of
sewage into
sea.

48. The Board shall cause the sewage of the districts to be discharged by means of the proposed outfall sewer (Conduit No. 6) within a period extending from high water to half-ebb or within such other period as the Local Government Board may on the application of the Board after inquiry by order allow. Provided that in case of heavy rain or other emergency the storm water may be discharged at any period of the tide from the said outfall sewer.

Easements
instead of
acquisition
of lands.

49.—(1) Notwithstanding anything in this Act contained the Board shall not under the provisions of this Act except by agreement purchase and take any lands for the purposes of the intercepting connecting or outfall sewers authorised by this Act but the Board may in lieu of acquiring any lands for the purpose of the sewers and works by this Act authorised acquire such easements and rights in such lands as they may require for the purpose of making maintaining cleansing repairing renewing and enlarging or duplicating such sewers and works and may give notice to treat in respect of such easements and rights and may in such notice describe the nature thereof and the several provisions of the Lands Clauses Acts (inclusive of those with regard to limited owners and to arbitration and the summoning of a jury) shall apply to such easements and rights as fully as if the same were lands within the meaning of those Acts.

(2) Provided that as regards any lands taken or used by the Board for the purpose of such sewers and for such works where

[3 Edw. 7.] *Western Valleys (Monmouthshire)* [Ch. ccxlviii.]
Sewerage Board Act, 1903.

they are laid underground the Board shall not (unless in the case of such works other than the sewers they give notice to treat for such lands and not merely for easements therein) be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall at all times after the completion of the sewers works have the same rights of passing over such lands for all purposes of or connected with the use or enjoyment of the adjoining lands as if such lands had not been taken or used by the Board. A.D. 1903.

50. The powers of the Board for the compulsory purchase of lands or easements for the purposes of this Act shall cease after the expiration of five years from the passing thereof. Period for compulsory purchase of lands.

51. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited books of reference the Board after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county of Monmouth for the correction thereof. Correction of errors &c. in deposited plans and books of reference.

If it appear to the justices that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Monmouth and a duplicate thereof shall also be deposited with the clerk to the Board.

The certificate and duplicate respectively shall be kept by such clerk of the peace and clerk respectively with the other documents to which the same relate and thereupon the deposited plans and books of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Board to take the lands and execute the works in accordance with such certificate.

52. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Board any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the Lands Clauses Acts with respect to lands and rentcharges as far as the same are Power to take easements &c. by agreement.

A.D. 1903. applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Purchase of additional lands by agreement.

53. The Board in addition to any lands which are vested in them by this Act may by agreement purchase take on lease acquire and hold for the purposes of this Act any lands not exceeding in the whole twenty acres but nothing in this section shall authorise the Board to create and permit the creation or continuance of any nuisance on any such lands.

The consideration for any such acquisition may be either money or land or a mixed consideration of money and land and on any exchange the Board may give or take money for equality of exchange.

Restriction on taking houses of labouring class.

54.—(1) The Board shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

(2) If the Board acquire or appropriate any house or houses under the powers by this Act granted in contravention of the provisions of this section they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce the penalty.

(3) For the purposes of this section the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any such persons who may be residing with them and the expression "house" means any house or part of a house separately occupied by any person or persons.

Application of moneys arising from sale &c. of land.

55. The proceeds of the sale of any surplus lands of the Board and all moneys received by them by way of fine or premium on any lease and other receipts in the nature of capital other than

borrowed moneys shall be distinguished as capital in the accounts of the Board and shall be applied in discharge of moneys borrowed by the Board but shall not be applied in the payment of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board. A.D. 1903.

56. For the protection of the Right Honourable Godfrey Charles Lord Tredegar and his sequels in estate or other the owner or owners for the time being of the Tredegar Settled Estates (hereinafter referred to as "the owner") the following provisions shall unless otherwise agreed between the owner and the Board have effect (that is to say):— For protection of Lord Tredegar.

- (1) Notwithstanding anything in this Act contained or shown on the deposited plans and sections the intercepting sewer (Conduit No. 3) by this Act authorised southward of Bassaleg Church and the outfall sewer (Conduit No. 6) shall be constructed in the line and according to the levels and in the manner shown on the plan and section signed in triplicate by Sir Alexander Hargreaves Brown the Chairman of the Committee of the House of Commons to whom the Bill for this Act was during its progress through Parliament referred and deposited in the Office of the Clerk of the Parliaments and the Private Bill Office of the House of Commons and not in the line shown on the deposited plans:
- (2) It shall not be lawful for the Board under the powers of this Act or of the provisions of the Public Health Acts incorporated with this Act or any Provisional Order made thereunder without the consent of the owner to enter upon take or use any portion of the lands forming part of Tredegar Park or to purchase or acquire any right or interest in any property belonging to the owner other than an easement or right of constructing maintaining repairing and using the sewers shown on the deposited plans and sections as amended as aforesaid:
- (3) No outfall overflow from the sewer weir pumps or other similar work except outfalls or overflows into the sea shall without the consent in writing of the owner be constructed by the Board south of Bassaleg Church and the said conduits and all tanks reservoirs and other works except shafts

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ventilators and manholes south of that church shall be constructed wholly under the surface of the ground and all shafts ventilators and manholes south of the said church shall be of such size description and design and shall be placed only in such positions to provide for the proper and efficient ventilation of the sewer as the owner may in writing prescribe :

- (4) It shall not be lawful for the Board save with the consent in writing of the owner to deviate in the construction of any of the works shown on the said plan signed as aforesaid south of Bassaleg Church beyond the limits of deviation shown on such plan or from the levels thereof except downwards :
- (5) If any sewer or drain constructed by the owner for the purpose of draining any property of the owner situate in any of the constituent districts or the rateable area as hereinafter defined cannot conveniently be drained into any sewer then existing of a constituent authority but can conveniently be drained into the sewers by this Act authorised the owner may give notice in writing to the Board requiring a connection and thereupon if the Board within twenty-one days after receipt of such notice or if any dispute shall arise within twenty-one days after the award of an arbitrator that such connection can conveniently be made give to the owner a counter notice of their intention to make the connection themselves the Board shall make the connection with all reasonable despatch at the expense of the owner and if the Board do not give such counter notice or having given it fail to make the connection with all reasonable despatch the owner may under the superintendence and to the reasonable satisfaction of the Board connect such sewer or drain with the sewers by this Act authorised and the section of this Act whereof the marginal note is "Penalty for making unauthorised communication &c. with Board's sewers" shall not apply to the owner :
- (6) The Board shall complete the whole of the portion of the intercepting sewer (Conduit No. 3) which will lie between the Percoed Lane and Bassaleg Church and all works in connection therewith within two years from the first commencement of any portion thereof and if the Board make

default in completing such portion of the said intercepting sewer and such other works as aforesaid they shall unless such default shall have been caused by accident or unforeseen difficulty pay to the owner a sum of five pounds for every day during which such default shall continue : A.D. 1903.

(7) The Board shall carefully preserve and remove all objects of geological or antiquarian interest discovered by them in the execution of their works in or under any lands of the owner (including any road to the subsoil of which the owner is entitled) and (subject to the rights of the Crown) the same shall be the absolute property of the owner and shall be handed over to him by the Board :

(8) If any difference shall arise between the owner and the Board under this section the same shall be referred to an engineer to be appointed unless otherwise agreed between the parties on the application of either party by the president of the Institution of Civil Engineers.

57. For the protection of the trustees under the will of the late Augusta Baroness Llanover (hereinafter called "the Llanover trustees") the following provisions shall notwithstanding any other provision of this Act have effect (that is to say) :— For protection of Llanover trustees.

Notwithstanding anything in this Act or shown on the deposited plans the intercepting sewer (Conduit No. 3) by this Act authorised shall subject as hereinafter mentioned between the points respectively marked A and B on the plan signed by Sir Alexander Hargreaves Brown Chairman of the Committee of the House of Commons to which the Bill for this Act was referred be constructed in the line and situation shown on the said plan by a red line instead of being constructed in the line and situation shown on the deposited plans and the Llanover trustees may and shall grant to the Board the easement of constructing maintaining repairing and using the said conduit in the line shown on the signed plan subject to the payment of compensation under the Lands Clauses Acts The Llanover trustees may sanction any variation of the said line within the limits of deviation shown on the deposited plans if they see fit to do so on the request of the Board.

58. The following provisions for the protection and benefit of John Capel Hanbury his successors and assigns (in this section referred to as "the owner") shall notwithstanding anything For protection of John Capel Hanbury.

A.D. 1903. contained in this Act to the contrary apply and take effect (that is to say) :—

- (1) Nothing in the Public Health Act 1875 (Support of Sewers) Amendment Act 1883 in its application to the lands of the owner or to the sewers and works of the Board where the same are intended to pass through or under the lands of the owner shall be deemed to empower the Board to take any coal or ironstone of the owner otherwise than by agreement and the owner his lessees or occupiers in working any mines of coal or ironstone under the said lands shall not be liable for or to make good any damage occasioned to the sewers and works of the Board by working the said mines in the usual and ordinary course pursued in the district :
- (2) The Board shall not except by agreement purchase any land or property of the owner or acquire any estate or right other than the easement or right of laying sewers or works in connection therewith in over or upon the same respectively :
- (3) In constructing any of the sewers or works authorised by this Act through or under the lands of the owner the Board shall not deviate to any extent downwards exceeding ten feet :
- (4) Nothing in this Act shall be construed to enable the Board to prevent the use of the collieries railway sidings or other works belonging or leased to the Ebbw Vale Steel Iron and Coal Company Limited and John Lancaster and Company Limited :
- (5) In constructing the intercepting sewer (Conduit No. 1) where the same is proposed to be carried through the culvert at the works of John Lancaster and Company Limited the Board shall not prevent the flow of the river through the said culvert. If any interruption or obstruction arise or be caused to the flow of the river through the said culvert by reason of any of the works of the Board the Board shall make good and repay to the owner and to John Lancaster and Company Limited any injury loss damage or expense which he or they may sustain or be put to by reason of such interruption or obstruction and the Board shall at their own cost abate and remove any such interruption or obstruction :

- (6) The Board before constructing any portion of the sewers or works on or through the lands of the owner shall cause plans and designs thereof showing all reasonable details to be submitted to the owner in order that he may suggest any reasonable deviation or alteration (within the limits authorised by this Act) in the design or mode of carrying out the works : A.D. 1903.
- (7) The Board shall make good the drainage and sewerage of the lands of the owner where interfered with by the sewers and works of the Board. The Board shall also at the request of the owner provide for the present and future drainage or sewerage of his lands suitable culverts across the said sewers and works wherever the same shall have been rendered necessary by the works of the Board :
- (8) All fences gates watercourses roads conveniences and other matters and things belonging to the owner which may be interfered with by the Board during construction or maintenance of the sewers and works by this Act authorised shall forthwith after such interference be made good by the Board and the surface of the ground wherever and whenever disturbed by the Board for the purposes of the said sewers and works shall be restored as nearly as may be to its former level and state :
- (9) The Board shall construct maintain and keep all their sewers and works in through and upon the lands of the owner watertight and shall compensate the owner his lessees and occupiers for and against any loss or damage caused by the leakage or bursting of any of the said sewers or works :
- (10) The Board shall in addition to any other compensation payable by them under or by virtue of this Act in respect of the lands of the owner make full compensation to the owner and his lessees and occupiers for all damages and loss occasioned to them or any of them respectively by any acts of the Board their officers or contractors or any workmen employed by them or any of them whether during construction or maintenance and shall at all times keep the owner indemnified against all and every claim for damage or loss occasioned to or sustained by the owner or his lessees or occupiers by or by reason of the construction or maintenance of the said sewers and works :

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- (11) The provisions of the section of this Act the marginal note of which is "Prohibition of sending sewage into rivers" shall not apply to any effluent water or other liquid matter discharged into the River Ebbw or any tributaries of such river from any coal mines belonging or reputed to belong to the owner :
- (12) The provisions of this section shall be in addition to and not in derogation from any other provisions of this Act or any Act incorporated herewith which may enure for the protection or benefit of the owner his lessees or occupiers :
- (13) Any difference which may from time to time arise between the owner and the Board with respect to any question under this section shall be settled unless otherwise agreed in manner provided by the Arbitration Act 1889.

For protection of
Crawshay
Bailey's
trustees.

59. For the protection of the trustees of the will of the late Crawshay Bailey and their sequels in estate or other the owner or owners for the time being of the Crawshay Bailey Estate (hereinafter referred to as and included in the expression "the owners") the following provisions shall unless otherwise agreed between the Board and the owners have effect (that is to say) :—

- (1) In this section the expression "the signed plan" means the plan and section signed by Sir Alexander Hargreaves Brown the Chairman of the Committee of the House of Commons to whom the Bill for this Act was during its passage through Parliament referred and deposited in the Private Bill Office of the House of Commons and in the Office of the Clerk of the Parliaments :
- (2) Notwithstanding anything in this Act or shown on the deposited plans the intercepting sewer (Conduit No. 2) by this Act authorised shall between the points respectively marked A and B on the signed plan be constructed in the line and according to the levels shown on that plan and not in the line or according to the levels shown on the deposited plans and sections and it shall not be lawful for the Board except by agreement with the owners to purchase or acquire any greater right or interest in any property forming part of the estate of the owners than an easement or right of constructing maintaining repairing and using the said conduit and the necessary subsidiary works in the lines and according to the levels shown on the signed plan and the

owners may and shall grant such easement or right accordingly subject to the payment by the Board of compensation under the Lands Clauses Acts : A.D. 1903.

- (3) The Board shall not in the construction of the said conduit deviate from the line or levels shown on the signed plan without the consent in writing of the owners :
- (4) The said conduit shall be constructed so as to cause as little damage as practicable to the estate and the Board shall restore and make good the surface of the ground or road under which the same will be situate to the reasonable satisfaction of the owners and shall maintain the same for a period of six months after the same is made good :
- (5) No outfall overflow from the sewer weir pumps tank or reservoir or other similar work shall without the consent in writing of the owners be constructed by the Board between the points marked A and B on the signed plan or within three hundred yards north-west of the said point marked A on such plan nor shall the Board discharge the contents of any sewer into the River Ebbw within three hundred yards of the lands edged green on the signed plan and the said conduit and all other works (except manholes) between the said points shall be constructed wholly under the surface of the ground and all manholes between the said points shall be of such size description and design and shall be placed only in such positions as the owners may in writing reasonably approve and shall in no case project above the surface of the ground :
- (6) No shaft shall without the consent in writing of the owners be constructed within three hundred yards of the aforesaid lands edged green on the signed plan nor shall any ventilator without the like consent be constructed between the said points A and B above the level of the surface of the ground :
- (7) If any sewer or drain constructed by the owners for the purpose of draining any property of the owners situate in any of the constituent districts cannot conveniently be drained into any sewer then existing of a constituent authority but can conveniently be drained into the sewers by this Act authorised the owners may give notice in writing to the Board requiring a connection and thereupon

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if the Board within twenty-one days after receipt of such notice or if any dispute shall arise within twenty-one days after the award of an arbitrator that such connection can conveniently be made give to the owners a counter notice of their intention to make the connection themselves the Board shall make the connection with all reasonable despatch at the expense of the owners and if the Board do not give such counter notice or having given it fail to make the connection with all reasonable despatch the owners may under the superintendence and to the reasonable satisfaction of the Board connect such sewer or drain with the sewers by this Act authorised and the section of this Act whereof the marginal note is "Penalty for making unauthorised communication &c. with Board's sewers" shall not apply to the owners :

- (8) As regards any house or building on lands of the owners the section of this Act of which the marginal note is "Board empowered or may be required to underpin or otherwise strengthen houses near works" shall be read and have effect as if in lieu of section 6 thereof the following provision had been contained therein :—

If in any case in which any house or building shall have been underpinned or strengthened such underpinning or strengthening shall prove inadequate for the support or protection of the house or building against injury arising from the execution or use of the works of the Board then and in every such case the Board shall make compensation to the owners lessees and occupiers of such house or building for such injury provided the claim for compensation in respect thereof be made by such owners within twelve months and by such lessees or occupiers within six months from discovery thereof :

- (9) The provisions incorporated with this Act of the Public Health Act 1875 shall not extend or apply to authorise the construction of any works or the acquisition of any rights or easements on in or under any land of the owners :
- (10) If any difference shall arise between the owners and the Board under this section the same shall be referred to an engineer to be appointed unless otherwise agreed between the parties on the application of either party by the President of the Institution of Civil Engineers.

60. For the protection of the Marquess of Bute his heirs and assigns (all included in the expression "the Marquess" where used in this section) the following provisions shall have effect except so far as the Board and the Marquess may otherwise agree :—

A.D. 1903
 For protec-
 tion of Mar-
 quess of
 Bute.

The Board shall not acquire by compulsion any easement or right over or in respect of any lands of the Marquess which would prevent the Marquess and persons authorised or permitted by him from using the lands through under or with respect to which such easement or right shall be acquired for any purpose whatsoever not involving the erection of any building over or physical interference with any sewer or work of the Board constructed under the powers of this Act but subsidence caused by working of minerals in a lawful and proper manner shall not be deemed physical interference :

The said intercepting sewer (Conduit No. 2) where it will pass through the lands numbered on the deposited plans 48 50 and 51 in the parish of Ebbw Vale instead of being constructed according to the centre line shown upon the deposited plans shall not without the consent of the Marquess be constructed otherwise than in the line shown in red on the plan a copy whereof has been signed in triplicate by Sir Alexander Hargreaves Brown the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred.

61. The following provisions shall have effect for the protection of Guest Keen and Nettlefolds Limited (in this section called "the company") unless otherwise agreed between the company and the Board (that is to say) :—

For protec-
 tion of Guest
 Keen and
 Nettlefolds
 Limited.

(1) The Board shall construct Conduit No. 3 in the parish of Rogerstone between the points respectively marked A B and C upon the plan signed in duplicate by Sir Alexander Hargreaves Brown the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred of which one copy is deposited in the Private Bill Office of the House of Commons and the other in the Parliament Office of the House of Lords according to the line and at the level shown upon such plan :

(2) Notwithstanding anything contained in this Act or shown upon the deposited plan the Board shall not enter upon take or use any of the property of the company but the

A.D. 1903.

company shall if required by the Board grant to the Board an easement or right of constructing as hereinbefore provided and of maintaining and repairing the sewer or conduit through the property of the company and the Board shall pay to the company such purchase-money and compensation for and in respect of such easement as may be agreed upon or failing agreement may be determined under the provisions of the Lands Clauses Acts relating to cases of disputed compensation :

- (3) The sewer or conduit and works connected therewith where the same are constructed by the Board through the property of the company shall be constructed of such materials and in such manner as the company may approve and according to plans sections and specifications submitted to and approved by them previously to the commencement of the construction of any part of such sewer conduit or works and such works shall be carried out by the Board in accordance with plans sections and specifications so approved and not otherwise and under the superintendence and to the reasonable satisfaction of an engineer to be appointed by the company and the Board shall pay to the company any cost incurred by them in and in relation to the approval of such plans and the superintendence of the works :
- (4) Nothing contained in this Act shall at any time hereafter be deemed to empower the Board to at any time divert alter remove or interfere with any railway sidings embankments or works of the company except temporarily so far as may be necessary for constructing maintaining and repairing the said conduit or sewer thereunder :
- (5) Notwithstanding the grant of such easement and the construction of the conduit or sewer the company shall have full right and liberty of constructing or altering railways sidings embankments and similar works and of erecting or altering buildings upon the lands through which such sewer or conduit shall pass Provided that such rights shall not be exercised so as to permit the erection or alteration of any building which would endanger the safety or interfere with the proper maintenance of the said conduit or sewer :
- (6) The provisions of this Act shall not be deemed to interfere with the rights or reputed rights of the company to at all

times execute and carry out such works as may be from time to time reasonably necessary to preserve or repair the northern bank of the River Ebbw as fully and effectually as the company could have done but for the passing of this Act : A.D. 1903.

- (7) If any difference shall arise between the Board and the company or their engineer under the provisions of this section such difference shall be referred to and determined by an engineer to be agreed upon or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers.

62. For the protection of the Ebbw Vale Steel Iron and Coal Company Limited John Lancaster and Company Limited and the Newport Abercarn Black Vein Steam Coal Company Limited (who are in this section respectively referred to as "the owner") the following provisions shall unless otherwise agreed between the Board and the owner have effect (that is to say) :— For protection of Ebbw Vale Steel Iron and Coal Company Limited and others.

- (1) Nothing in the Public Health Act 1875 (Support of Sewers) Amendment Act 1883 in its application to the lands of the owner or to the sewers and works of the Board where the same are intended to pass through or under the lands of the owner shall be deemed to empower the Board to take any coal or ironstone of the owner otherwise than by agreement and the owner in working any mines of coal or ironstone under the said lands shall not be liable for or to make good any damage occasioned to the sewers and works of the Board by working the said mines in the usual and ordinary course pursued in the district :
- (2) The Board shall not except by agreement purchase any land or property of the owner or acquire any estate or right other than an easement or right of constructing maintaining and repairing sewers or works in connection therewith in over or upon the same respectively :
- (3) The Board shall make full compensation to the owner for all easements purchased by the Board and for all damages and loss occasioned to the owner by any acts of the Board their officers or contractors or any workmen employed by them or any of them whether during construction or maintenance of any sewers or works authorised by this Act and shall at all times keep the owner indemnified against all and every claim for damage or loss occasioned to or sustained

A.D. 1903.

- by the owner by or by reason of the construction or maintenance of the said sewers and works :
- (4) The provisions of the section of this Act the marginal note of which is " Prohibition of sending sewage into rivers " shall not apply to any effluent water or other liquid matter discharged into the River Ebbw or any tributaries of such river from any coal mines of the owner :
- (5) Every sewer or conduit and works connected therewith where the same are constructed by the Board through the property of the owner shall be constructed according to plans and sections to be previously submitted to and reasonably approved by him or in case of difference by an arbitrator appointed in pursuance of this section. Provided that if for twenty-one days after such plans and sections shall have been submitted to the owner he shall fail to give notice to the engineer of the Board of his objections thereto he shall be deemed to have approved thereof :
- (6) Nothing contained in this Act shall at any time hereafter be deemed to empower the Board to at any time divert alter or interfere with any railway sidings embankments or works of the owner except temporarily so far as may be necessary for constructing maintaining and repairing the said conduit or sewer thereunder :
- (7) Notwithstanding the grant of any easement for and the construction of any conduit or sewer the owner shall have full right and liberty of constructing or altering railways sidings embankments and similar works and of erecting or altering buildings upon the lands through which such sewer or conduit shall pass. Provided that such rights shall not be exercised so as to permit the erection or alteration of any building which would endanger the safety or interfere with the proper maintenance of the said conduit or sewer :
- (8) The sewer shall so far as practicable be so constructed and maintained as to prevent the water of the River Ebbw from being in any way diverted or drained away :
- (9) The Board shall so construct and maintain their works where the same will pass through or under any railways sidings or roads which afford access to or egress from the premises of the owner as not to interrupt or interfere with such access or egress and if any interference with or delay is caused to the traffic to or from the premises of the owner the Board shall make compensation to the owner for any

loss to which he may be put by reason of such interruption or interference : A.D. 1903.

- (10) Notwithstanding anything shown on the deposited plans and sections the intercepting sewer (Conduit No. 3) by this Act authorised shall between the points respectively marked (A) and (B) on the plan signed by the Right Honourable Lord Kintore Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred be constructed in the line and situation shown on the said plan by a brown line if the owners lessees and occupiers of the properties affected shall grant to the Board subject to the payment of compensation under the Lands Clauses Acts the easement necessary for the purpose of constructing repairing and maintaining the said sewer according to the said brown line and if the owners lessees and occupiers of such properties shall not grant to the Board the said easement then the sewer shall be constructed in the line and situation shown on the said plan by a green line instead of being constructed in the line and situation shown on the deposited plans :
- (11) Between the weir on the River Ebbw situate five hundred feet or thereabouts north of Abercarn House and the bridge carrying the road over that river situate four hundred feet or thereabouts south of Abercarn House the intercepting sewer (Conduit No. 3) shall notwithstanding the limits of deviation shown on the deposited plans not be constructed on the western bank of the river :
- (12) Notwithstanding anything contained in this Act or shown upon the deposited plans the Board shall not without the consent of John Lancaster and Company Limited enter upon take or use or acquire any easement through the lands numbered on the deposited plans 3 in the parish of Abercarn :
- (13) The provisions of this section shall be in addition to and not in derogation from any other provisions of this Act or any Act incorporated herewith which may enure for the protection or benefit of the owner his lessees or occupiers :
- (14) Any difference which may at any time arise between the owner and the Board with respect to any question under this section shall be settled unless otherwise agreed in manner provided by the Arbitration Act 1889.

A.D. 1903.

For protec-
tion of Mon-
mouthshire
Steel and
Tin Plate
Company
Limited.

63. For the protection of the Monmouthshire Steel and Tin Plate Company Limited (in this section referred to as "the company") the following provision shall unless otherwise agreed between the Board and the company have effect (that is to say):—

Notwithstanding anything in this Act or shown on the deposited plans the intercepting sewer (Conduit No. 3) by this Act authorised shall between the points respectively marked (y) and (z) on the plan signed by the Right Honourable Lord Kintore the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred be constructed in the line and situation shown on the said plan by a red line instead of being constructed in the line and situation shown on the deposited plans.

For protec-
tion of Mon-
mouthshire
Commis-
sioners of
Sewers.

64. The following provisions shall have effect for the protection of the Monmouthshire Commissioners of Sewers (in this section referred to as "the commissioners") (that is to say):—

- (1) The Board shall not discharge any sewage or the contents of any sewers into the reens under the jurisdiction of the commissioners or into any streams or rivers except into the River Ebbw or its tributaries north of Bassaleg Church from which the water supply in such reens is derived:
- (2) Notwithstanding anything contained in this Act or shown on the deposited plans referred to in this Act the Board shall not in any way alter or interfere with any reen or other work under the jurisdiction of the commissioners nor construct any work nor do anything which may tend to lessen the water supply in any of the reens and the Board shall not directly or indirectly abstract water from such reens or from any streams or rivers from which the water supply in the reens is derived:
- (3) Where the sewer is constructed through the Wentlooge level it shall be constructed and maintained so that no part of such sewer shall be nearer to the bottom of such reens than two feet and also so as to prevent any water either in the reens or ditches or elsewhere in the said level from being in any way diminished diverted or drained away from such reens ditches or elsewhere or from being carried along the line of sewer and all works shall be carried out renewed and maintained in accordance with plans sections and specifications and of such materials and method of construction and at such times as the surveyor acting for the commissioners may direct and in all things at the expense of the

Board If the effect of the construction or maintenance of any of the works of the Board is to diminish divert or drain away the waters aforesaid the Board shall pay compensation for any loss which may be incurred by the owners or occupiers of any land within the level or by the commissioners by reason of the diminution diversion or draining away of any such water Provided that all questions arising between the parties as to the diminishing diverting or draining away of water as aforesaid and any compensation to be paid in respect thereof shall be determined by an arbitrator to be appointed failing agreement between the parties by the President of the Institution of Civil Engineers : A.D. 1903.

(4) Where the outfall sewer (Conduit No. 6) by this Act authorised crosses or penetrates the sea defence works of the commissioners the same shall be so constructed as not in any way to interfere with or affect the stability of such defences by the removal of any portion of the foreshore or work of the commissioners or otherwise and the Board shall pay to the commissioners on demand any cost to which the commissioners may be put in respect of the reconstruction or maintenance of any of the sea defence works of the commissioners which may be rendered necessary by reason of the construction or maintenance of the said outfall sewer and shall indemnify the commissioners against any claim or demand which may be made in consequence of any failure of such sea defence works :

(5) If any damage is caused to any of the reens or works of the commissioners or to the Wentlooge level or the lands in that level by the overflow of sewage from the sewers or by the bursting leakage or failure of the sewers or by subsidence or through any other cause whatever owing to the construction or use of the sewers the Board shall make good to the commissioners and the owners and occupiers of lands in the Wentlooge level all loss which may be incurred by them and all costs and expenses to which they may be put and shall effectually indemnify the commissioners against any claim or demand which may be made in consequence or arising out of any such overflow bursting leakage failure or subsidence.

65. The following provisions for the protection of the London and North Western Railway Company (hereinafter referred to as "the North Western Company") and for that company and the For protection of certain railway companies.

A.D. 1903. Great Western Railway Company (hereinafter referred to as "the two companies") and for the Great Western Railway Company (hereinafter referred to as "the Great Western Company") shall unless otherwise agreed between the North Western Company or the two companies or the Great Western Company as the case may be and the Board have full force and be binding upon the Board:—

(1) The intercepting sewer (Conduit No. 2) by this Act authorised where the same shall be carried under the Merthyr Tredegar and Abergavenny Railway and other the property of the North Western Company and under the authorised Brynmawr and Western Valleys Railway of the two companies shall for the entire length across the said railways and for twenty-five feet on each side of the boundary fence of each such railway be of such materials and dimensions as shall be reasonably approved by the principal engineer of the North Western Company or by the engineer for the time being in charge of the said Brynmawr and Western Valleys Railway:

(2) The intercepting sewers (Conduits Nos. 1 2 3 and 4) and the outfall sewer (Conduit No. 6) where the same shall be carried under the railways and other property of the Great Western Company shall for the entire length across the said railways and for twenty-five feet on each side of the boundary fence of each such railway be of such materials as shall be reasonably approved by the principal engineer of the Great Western Company:

(3) The said sewer shall for the entire length of each such crossing under the said railways and property be laid and carried by means of a steel pipe founded on and surrounded by Portland cement concrete to be constructed and maintained by the Board so that no part thereof shall be less than three feet below the levels of the rails of the said railways at the respective points of crossing and only according to plans and sections to be previously submitted to and reasonably approved by such respective engineers and all such works at such crossings and all maintenance repairs and renewals thereof shall be done and executed by the Board to the reasonable satisfaction in all respects and under the superintendence of such respective engineers and at such times as he or they shall approve and in all things at the expense of the Board and whenever any such

works maintenance repairs or renewals are constructed they shall be so constructed executed and maintained that the said railways or any of the works thereof respectively shall not be injured nor the traffic upon the said railways in any way impeded : A.D. 1903.

(4) If by reason of any works or proceedings of the Board or of their contractors or workmen or the failure leakage or bursting of the said sewer the said railways or either of them or any of the works or lands thereof shall be injured or damaged such injury or damage shall be forthwith made good by the Board at their expense and to the reasonable satisfaction of such respective engineers and in the event of their failing so to do or in case of emergency the North Western Company or the two companies or the Great Western Company as the case may be may make good the same and recover the reasonable expense thereof from the Board and if any interruption shall be caused to the traffic on the said railways by reason of any works of the Board or of any such failure leakage or bursting as aforesaid the Board shall make good and repay to the North Western Company or to the two companies or to the Great Western Company as the case may be any loss damage or expense which they may sustain or be put to by reason of the construction or failure of the said sewers or in respect of the interruption to the traffic on the said railways :

(5) The Board shall not without the consent in writing of the North Western Company under their common seal or the two companies under their respective common seals or the Great Western Company under their common seal as the case may be purchase take enter upon or use temporarily or permanently any lands property or works of the North Western Company or of the two companies or of the Great Western Company or any estate right or easement privilege or authority in over or upon the same respectively or alter vary or interfere with the said railways or any of the respective works thereof or thereto appertaining except that the Board may purchase and the North Western Company or the two companies or the Great Western Company as the case may be may and shall sell and grant to the Board such easement or right as may be necessary for carrying the said sewer under the said Merthyr Tredegar and Abergavenny Railway and under the said Brynmawr and

A.D. 1903.

Western Valleys Railway and under the railways of the Great Western Company according to the provisions hereinbefore prescribed and for repairing maintaining and renewing the same and the works thereof at such crossing The amount to be paid for the acquisition of such easement shall be ascertained in case of difference in the manner provided by the Lands Clauses Consolidation Act 1845 with respect to the purchase of lands otherwise than by agreement and the easement or right so to be taken shall be deemed to be land so far as respects the proceedings for the acquisition thereof and also for the purpose of any arbitration :

- (6) The Board shall bear and on demand pay to the North Western Company or to the two companies or to the Great Western Company the reasonable expense of the employment by them during the making or maintenance of the said sewer under the said railways and property of the North Western Company or of the two companies or of the Great Western Company of a sufficient number of inspectors signalmen or watchmen for watching the said railway and works and the conduct of the traffic thereon with reference to and during the execution and maintenance of the said intended works and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of any person or persons in the employ of the Board with reference thereto :
- (7) In case of any dispute arising between the Board and the North Western Company or the two companies or the Great Western Company touching any of the matters referred to in this section or of anything to be done hereunder such difference shall unless otherwise provided for be determined by an arbitrator to be appointed (unless otherwise agreed upon) upon the application of either of the parties in difference by the President of the Institution of Civil Engineers.

For protection of Brecon and Merthyr Tydfil Junction Railway Company.

66. In executing the works by this Act authorised where the same will affect the railway works or property of the Brecon and Merthyr Tydfil Junction Railway Company (hereinafter called "the Brecon Company") the Board shall be subject to the following conditions :—

- (1) All works to be done by the Board in the exercise of the powers conferred by this Act in any way affecting the railway works and property of the Brecon Company shall be

executed under the superintendence (if the same be given) and to the reasonable satisfaction of the engineer for the time being of that company and in such manner and according to plans and drawings to be previously submitted to an dreasonably approved by him or in case of difference by an arbitrator appointed in pursuance of this section Provided that if for fourteen days after such plans and drawings shall have been submitted to the said engineer he shall fail to give notice to the Board of his objections thereto he shall be deemed to have approved thereof : A.D. 1903

- (2) Any works which the Board may execute under this section shall be so constructed as to cause no obstruction to the access to Bassaleg Station or injury to the railway of the Brecon Company or interruption to the passage or conduct of traffic over the same and if in consequence of the execution of such works any obstruction is caused or any injury done to the railway or any interruption be caused to the traffic the Board shall make full compensation to the Brecon Company in respect of such obstruction injury or interruption the amount of such compensation unless agreed upon to be determined by arbitration :
- (3) The Board shall only acquire such an easement under the railway lands and property of the Brecon Company as may be necessary for constructing or maintaining the works by this Act authorised and shall pay to the Brecon Company for such easement such a sum as may be agreed upon or failing agreement as shall be settled by arbitration in manner provided by the Lands Clauses Consolidation Act 1845 :
- (4) Any dispute or difference which may arise between the Brecon Company and the Board with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed (in default of agreement) by the Board of Trade on the application of the Brecon Company or the Board and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

67. Nothing herein contained shall authorise the Board to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to the King's most Excellent Majesty in right of His

Saving
rights of
Crown.

A.D. 1903. Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent such Commissioners and such Board are hereby respectively authorised to give) neither shall anything herein contained extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exerciseable by the King's Majesty.

Right of
constituent
authorities
to use sewers
of Board.

68. For the purpose of this Act all sewers made by the Board shall vest in and be under the control of the Board but each constituent authority shall be entitled as of right to have communication from any of their sewers into the sewers of the Board subject to the following provisions :—

- (1) The communications between the sewers of each constituent authority and those of the Board shall be made by the Board at the expense of the constituent authority and such communication shall when made be wholly under the control of the Board and the Board shall at their own cost be at liberty at any time to alter such communication :
- (2) Any constituent authority proposing to construct any new sewer for the purpose of bringing the sewage of their district or of any part thereof into any sewer of the Board by a new communication with such last-mentioned sewer shall two months at least before they commence the construction of such new sewer send to the Board plans and sections showing the proposed places of communication and the proposed level at such places of the intended new sewer and the place of every such communication and the level thereof of every such new sewer shall be such as shall be determined by the Board and every dispute respecting any such determination which may arise between any of the constituent authorities and the Board shall be referred to an arbitrator to be appointed by agreement between the Board and the constituent authority or failing agreement by the Local Government Board :
- (3) A constituent authority shall not be entitled to cause to pass into any sewer or work of the Board any matter or substance by which the free flow of the sewage or surface or storm water may be interfered with or by which any such sewer or work may be injured or any waste steam or

water or other liquid at a higher temperature than 110° Fahrenheit : A.D. 1903.

The Board may refuse to allow any sewer from which such matters substances waste steam water or other liquid are not excluded to be or remain connected with their sewers or works and shall have power to do all things necessary to give effect to such refusal :

(4) The constituent authorities respectively shall so far as practicable prevent storm water from flowing into the sewers and branch sewers belonging to them and through such sewers into the main trunk sewers of the Board :

(5) The constituent authorities shall not permit any drain sewer surface drain eye hole or pipe conveying or capable of conveying sewage surface water subsoil water or other matter from any land not situate within their respective districts either directly or indirectly to be connected or to communicate with the sewers branch sewers or drains belonging to them so as to drain into the main trunk sewers of the Board and shall not permit any such sewer surface water subsoil water or other matter to pass directly or indirectly therein unless with the consent in writing of the Board.

69.—(1) The rural district council shall drain into the sewers and sewerage works of the Board their existing sewers and any sewers to be at any time hereafter constructed in and for the use of such portion of the parish of Rogerstone within the rural district of St. Mellons as lies between the River Ebbw and the Monmouthshire and Breconshire Canal (except so much thereof as lies to the north-east of the main road leading from Newport to Risca south of the Rising Sun Inn) and shall be entitled for that purpose to have communication from any of their sewers into the sewers of the Board at such places and at such levels as may failing agreement be determined by arbitration.

Provisions
as to sewer-
age of por-
tion of rural
district.

(2) The rural district council may at any time or times hereafter elect to and shall thereafter continue to drain into the sewers and works of the Board the sewage from any additional area or areas other than the portion of the parish of Rogerstone aforesaid and whether the whole of a parish or part of a parish which shall form any portion of their district and may for this purpose have from time to time further communication with the sewers of the Board :

A.D. 1903.

Provided always that in case the rural district council shall at any time or times elect to drain the sewage from any such additional area or areas into the sewers and works of the Board they shall in addition to the plans which they are required to furnish under the fifth subsection of this section furnish to the Board plans and sections necessary for showing the additional area or areas the sewage wherefrom it is proposed to discharge into the sewers and works of the Board and the sewers and intended sewers therein and shall also in every such case furnish to the Board particulars of the assessable value of the property and hereditaments within the proposed additional area or areas.

(3) The Board shall complete Conduits No. 3 No. 5 and No. 6 authorised by this Act (so far as required for the disposal of the sewage of the rural district council) with all reasonable speed and shall not abandon or postpone the construction of any portion thereof so required as aforesaid without the consent of the rural district council in writing being first obtained.

(4) The communications between the sewers of the rural district council and the sewers of the Board shall be made by the Board at the expense of the rural district council and shall not be completed until the sewers and works of the Board are sufficiently completed to receive the sewage from the sewers of the rural district council. Such communications shall be made by the Board with all reasonable speed and when made shall be under the control of and maintained by the Board and the Board shall be at liberty at any time at their own expense to alter such communications. Provided always that the control of the Board shall be so exercised as not unreasonably to interfere with the rights of the rural district council.

(5) If the rural district council propose to construct any new sewer for the purpose of bringing the sewage of their district or any part thereof into any sewer of the Board by a new communication with such last-mentioned sewer they shall two months at least before they commence the construction of such new sewer send to the Board plans and sections showing the proposed places of communication and the proposed level at such places of the intended new sewer and the place of every such communication and the level thereat of every such new sewer shall be such as may failing agreement be determined by arbitration.

(6) The Board shall maintain and keep at their own expense Conduits No. 3 No. 5 and No. 6 authorised by this Act (so far as required for the disposal of the sewage of the rural district) and all

communications therewith made by them with the sewers of the rural district council in a good and sufficient state of repair and properly flushed so that the same may be in a fit and proper condition to receive and clear and capable of receiving and clearing all sewage which from time to time may lawfully be discharged into the sewers and sewage works of the Board from the rural district. A.D. 1903.

(7) The rural district council shall pay to the Board in respect of the use of the sewers and sewage works of the Board used for the discharge of sewage coming from the rural district such annual sum as shall be equivalent to a rate of fivepence in the pound on the assessable value of the property and hereditaments in that portion of the parish of Rogerstone mentioned in the first subsection of this section or in any other portion or portions of the rural district from which sewage shall from time to time be discharged into the sewers and works of the Board under the second subsection of this section.

The first payment by the rural district council to the Board whether for a whole year or for a proportionate part of a year shall be made on the twenty-ninth day of September next following the date mentioned in section 71 of this Act (Discontinuance of existing sewerage works) and each succeeding payment shall be made on the twenty-ninth day of September in each succeeding year. The payments to be made by the rural district council to the Board shall be deemed to be special expenses within the meaning of the Public Health Act 1875 incurred in respect of the contributory place of Rogerstone and any other contributory places which may hereafter be drained into the sewers of the Board and shall be payable as to the portion of the parish of Rogerstone in subsection 1 of this section referred to as from the date when the communications between the sewers of that portion of the rural district and the sewers and works of the Board shall have been completed and as to any additional area or areas of the rural district which may hereafter from time to time be drained into the sewers of the Board under the provisions herein in subsection 2 contained as from the date or the respective dates on which the communications between the sewers of such additional area or areas and the sewers and works of the Board shall severally have been completed and for the purpose of determining the amounts of any of such payments the same shall if necessary be apportioned.

(8) At the expiration of the period of thirty years from the time when the rural district council shall first use the sewers and

A.D. 1903. works of the Board and at the expiration of every subsequent period of seven years either the rural district council or the Board shall be at liberty to apply to the other to have the rate of payment hereunder revised and in default of agreement the matter shall be referred to arbitration under the provisions hereinafter in this section contained.

(9) The rural district council shall upon the request of the Board forthwith furnish to the Board a copy of the valuation list in force at the date of the completion of the sewers and works of the Board showing the assessable values of all property and hereditaments in the rural district draining into the sewers and works of the Board and shall also from time to time when required by the Board furnish to them a copy of the current valuation list showing the assessable values aforesaid and such valuation list shall be certified by the clerk to the rural district council as the correct valuation list for the time being of the said property and hereditaments.

(10) In case default be made in payment of the sum payable to the Board by the rural district council under the provisions of this section whether the same shall have been demanded or not such sum shall be deemed to be a debt due from the rural district council to the Board together with interest at the rate of four per centum per annum such interest to commence thirty days from the date at which such payment became due.

(11) The rural district council shall so far as practicable prevent storm water from flowing into their sewers and through such sewers into the sewers of the Board.

(12) The rural district council shall so far as practicable prevent the sewage or surface or subsoil water of any district or place outside their district from passing into any sewer or sewers belonging to them so as to discharge into the sewers and sewage works of the Board without the consent of the Board in writing first being obtained but such consent shall not be unreasonably withheld.

(13) Any difference arising between the Board and the rural district council other than as to the payment of any sum accrued due as hereinbefore provided shall be determined by an arbitrator to be appointed in default of agreement on the request of either of them by the Local Government Board.

Provisions as
to sewerage
of Bryn-
mawr Urban
District.

70. The Board shall give to the Brynmawr Urban District Council six months' notice in writing before commencing the construction of so much of intercepting sewer (Conduit No. 1) as is

situate in the urban district of Nantyglo and Blaina and if within three months after receiving such notice or within such longer period not less than three months before the commencement of the construction of the said sewer the Brynmawr Urban District Council by notice in writing to the Board so elect the Board shall allow the sewers of that council to be made to communicate with the sewers of the Board subject to the provisions of this Act so that the sewage of the district of that council may be dealt with by the sewers of the Board on such terms and subject to such conditions as failing agreement may be settled by an arbitrator to be appointed failing agreement between the Board and the Brynmawr Urban District Council by the Local Government Board Provided that the Brynmawr Urban District Council shall be at liberty to withdraw any notice given by them to the Board under the provisions of this section if within six months after the receipt of such notice the Board shall not have commenced the construction of the said sewer.

A.D. 1908.

71. Within three months after the completion of the sewers and other works by this Act authorised the urban district councils and the rural district council in respect of the portion of Rogerstone parish referred to in the section of this Act of which the marginal note is "Provisions as to sewerage of portion of rural district" when the communications between the sewers of the rural district council and the works of the Board have been made shall cease to discharge into such rivers or any of their tributaries whether directly or indirectly any sewage or sewage effluent whether the same shall be purified or disinfected or not from any sewer drain or other work belonging to them.

Discontinu-
ance of
existing
sewerage
works.

72. In addition to the powers vested in them by this Act the Board shall have the powers of a sanitary authority within the meaning of the Rivers Pollution Prevention Act 1876 and the districts of the urban district councils shall be deemed to be their district.

Board to
have powers
under Rivers
Pollution
Act.

73. After three months from the completion of the sewers and other works by this Act authorised it shall not be lawful for any person to do any of the following things (that is to say):—

Prohibition
of sending
sewage into
rivers.

- (1) To open into the Rivers Ebbw or Sirhowy or any of their respective tributaries any sewer drain pipe or channel with intent or in order thereby to provide for the flow or passage of sewage or other offensive or injurious matter:—

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- (2) To cause or without lawful excuse to suffer any sewage or other offensive or injurious matter to flow or pass into the Rivers Ebbw or Sirhowy or any of their respective tributaries down or through any sewer drain pipe or channel existing prior to the completion of the sewers or other works of the Board whether before used for such purpose or not :
- (3) To open into any stream canal cut or watercourse communicating with the Rivers Ebbw or Sirhowy or any of their respective tributaries any sewer drain pipe or channel with intent or in order thereby to provide for the flow or passage of sewage or other offensive or injurious matter in such manner that the same will be carried or be likely to be carried by through or out of that stream canal cut or watercourse into the Rivers Ebbw or Sirhowy or any of their respective tributaries :
- (4) To cause or without lawful excuse to suffer any sewage or other offensive or injurious matter to flow or pass into any stream canal cut or watercourse communicating as aforesaid down or through any sewer drain pipe or channel existing prior to the completion of the sewers or other works of the Board whether before used for such purpose or not in such manner that the same will be carried or be likely to be carried by through or out of that stream canal cut or watercourse into the Rivers Ebbw or Sirhowy or any of their respective tributaries.

Provided that in applying this section to places not within the said urban districts or the said parish nothing in this section shall be deemed to prevent the use of any sewer drain pipe or channel for purposes for which at the passing of this Act the same was lawfully used in connection with any mine or manufactory and nothing shall be deemed to prevent the discharge of washings from coal mines or water from manufactories at a higher temperature than 110 degrees Fahrenheit.

If any person does anything in contravention of this section he shall for every such offence on the prosecution of the Board be liable on summary conviction to a penalty not exceeding twenty pounds and to a further penalty not exceeding five pounds for every day on which the offence is continued after notice of the offence given to him by the Board and after such conviction the Board may stop up at any point within the said urban districts or

the said parish the sewer drain pipe or channel in respect of which the offence is committed and for that purpose may do all works that appear to them requisite and may enter on any lands and the Board may recover summarily from the offender with costs all expenses reasonably incurred by them in so doing. A.D. 1903.

Provided that this section shall not apply to any portion of the district of the rural district council other than the portion of Rogerstone parish hereinbefore referred to.

74. Nothing in this Act shall apply to the urban districts of Bedwelty and Tredegar until after the expiration of three years from the passing of the same and after the expiration of such period no proceedings for anything done in alleged contravention of the section of this Act the marginal note of which is "Prohibition of sending sewage into rivers" shall be taken by the Board against the Bedwelty and Tredegar Urban District Councils or either of them or against the owners lessees or occupiers of any mine manufactory or other industry without the consent of the Local Government Board and for this purpose proceedings under the said section shall be deemed to be proceedings under section 6 of the Rivers Pollution Prevention Act 1876. As to application of Act to urban districts of Bedwelty and Tredegar.

.75.—(1) Any person not being an officer or servant of the Board or not being duly authorised in writing by the Board in that behalf who shall make or attempt to make any communication or connection with any sewer or other work belonging to the Board for the purpose of connecting therewith any sewer drain channel or pipe for the conveyance thereto or the transmission thereinto of any solid liquid or gaseous matter whatsoever or shall otherwise interfere with the sewers or other works of the Board or shall do any act which shall obstruct or tend to obstruct the free flow or passage of liquid or solid matter therein or which may otherwise prejudicially interfere with or affect the free or efficient working of the said sewers or works shall be liable on summary conviction to a penalty not exceeding fifty pounds and in addition thereto a further penalty not exceeding five pounds for every day on which the offence is proved to have existed and until the same shall be discontinued. Penalty for making unauthorised communication &c. with Board's sewers.

(2) In addition to the provisions of subsection 1 of this section the Board if they think fit may at any time whether before or after conviction as aforesaid cut off or close any unauthorised connection or communication as aforesaid or take such steps as to them may seem requisite for making good the sewers interfered

A.D. 1903. with or may do any act which may be reasonably necessary for restoring the free and efficient working of their sewers and works and may recover summarily from the offender the cost and expenses of so doing.

(3) The provisions of this section shall be in addition to and not in substitution for nor shall prejudice any other remedy or mode of proceeding which may otherwise be available to the Board.

Extension of
section 305
of Public
Health Act
1875 to
Board.

76. The provisions of section 305 of the Public Health Act 1875 shall apply for the purpose of this Act not only in the cases therein mentioned but also where the Board desire to exercise the powers thereof for the purpose of discovering or ascertaining any communication with or opening into any of the sewers of the Board or the flowing or passing of any matter unto such sewers or into any drain channel or watercourse communicating therewith.

PART IV.

FINANCIAL PROVISIONS.

Power to
borrow.

77.—(1) The Board may from time to time borrow at interest any sum or sums of money for the purposes following (that is to say) :—

(A) For the purchase of lands and easements for and for the construction of the intercepting connecting and outfall sewers and other works by this Act authorised the sum of two hundred and thirty-seven thousand five hundred pounds :

(B) For paying the taxed costs charges and expenses of this Act including the costs of the opposition thereto of the urban district council of Nantyglo and Blaina as hereinafter provided the sum requisite for that purpose :

And with the approval of the Local Government Board such further moneys as the Board may require for any of the purposes of this Act.

(2) In order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the Board may mortgage or charge the moneys receivable by them from the constituent authorities or from the rural district council and all rates and moneys which they are authorised to levy and collect within the districts of the constituent authorities under the powers of this Act.

Mode of
raising
money.

78. The Board may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue

of debenture or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others and for the purposes of such issue under the last-mentioned Act the Board shall be deemed a local authority under that Act and the revenue of their undertaking and the moneys receivable by them from the constituent authorities and all rates and moneys which they are authorised to levy and collect shall be deemed to be the local rate as defined by the said Act. Provided that in the case of any moneys borrowed under the Local Loans Act 1875 the prescribed period for the repaying of the same shall be the period mentioned in respect of such moneys in the section of this Act of which the marginal note is "Periods for discharge of loans":

A.D. 1903.

Provided further that the Board shall not invest any moneys standing to the credit of any sinking fund in their own securities and the provisions of this Act in regard to the formation of sinking funds shall apply in substitution for the like provisions of the Local Loans Act 1875.

79. The following sections of the Public Health Act 1875 shall with the necessary modifications extend and apply to mortgages granted under this Act (that is to say):—

Provisions of Public Health Act 1875 as to mortgages to apply.

- Section 236 (Form of mortgage);
- Section 237 (Register of mortgages);
- Section 238 (Transfer of mortgages).

80. The Board shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act referred to as "the prescribed period") following (that is to say):—

Periods for discharge of loans.

As to moneys borrowed for the purpose (A) mentioned in the section of this Act the marginal note whereof is "Power to borrow" within fifty-five years from the date or dates of the borrowing of the same:

As to moneys borrowed for the purpose (B) in the said section mentioned within five years from the date or dates of the borrowing of the same:

As to moneys borrowed with the approval of the Local Government Board within such period as they may respectively think fit to sanction.

81. The Board shall pay off all moneys borrowed by them under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or

Mode of payment off of money borrowed.

A.D. 1903. by means of a sinking fund or partly by such instalments and partly by a sinking fund and subject to the provisions of this Act the payment of the first instalment or the first payment to the sinking fund shall be made within one year from the time of borrowing the sum in respect of which the payment is made.

Sinking
fund.

82.—(1) If the Board determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed and maintained either —

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a non-accumulating sinking fund; or

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Board being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Board towards the equal annual payments to the fund.

(4) The Board may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Board shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate

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per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Board : A.D. 1903.

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards such equal annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Board in addition to the payments provided for by this Act.

(7) If it appears to the Board at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Board to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Board shall increase the payment to such extent as the Local Government Board may direct.

(8) If the Board desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Board may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the Local Government Board shall approve.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay the loan in respect of which it is formed within the prescribed period the Board may with the consent of that Board discontinue the equal annual payments to

A.D. 1903. such sinking fund until the Local Government Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Board with the consent of the Local Government Board may determine.

Protection of
lender from
inquiry.

83. A person lending money to the Board under this Act shall not be bound to inquire as to the observance by the Board of any provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or any part thereof.

Board not
to regard
trusts.

84. The Board shall not be bound to see to the execution of any trust whether expressed implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Board shall from time to time be a sufficient discharge to the Board in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether the Board or not have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register.

Appoint-
ment of
receiver.

85.—(1) The mortgagees of the Board by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one thousand pounds in the whole.

(2) The application for the appointment of a receiver shall be made to the High Court.

Power to
re-borrow.

86. If the Board pay off any moneys borrowed by them under this Act otherwise than by instalments or by means of a sinking fund or out of the proceeds of the sale of land or other property or out of fines or premiums on leases or out of other moneys received on capital account not being borrowed moneys they may from time to time re-borrow the same but all moneys so re-borrowed shall be repaid within the prescribed period and shall be deemed to form the same loan as the moneys originally borrowed and the obligations of the Board with respect to the

repayment of the loan and to the provision to be made for such repayment shall not be diminished by reason of such re-borrowing. A.D. 1903.

87.—(1) The clerk to the Board shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the clerk to the Board showing for the year next preceding the making of such return or for such other period as the Local Government Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the clerk to the Board shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court. And notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

Annual
return to
Local Go-
vernment
Board.

(2) If it appears to the Local Government Board by that return or otherwise that the Board have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default shall have been made shall be paid or applied as in such order mentioned and any such order shall

A.D. 1903. — be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

Application
of money
borrowed.

88. All moneys borrowed by the Board under the powers of this Act shall be applied only to the purposes for which they are authorised to be borrowed and to which capital is properly applicable.

Board may
issue stock.

89. The Board shall be deemed to be an urban authority within the meaning and for the purposes of Part V. of the Public Health Acts Amendment Act 1890 and to have adopted that part of the Act and the Board may exercise their borrowing powers by the creation and issue of stock in the manner by that Act provided and subject to the provisions therein contained.

Contribu-
tions by
constituent
authorities.

90.—(1) The expenses incurred by the Board in pursuance of this Act other than capital expenditure shall be defrayed out of a common fund to be formed from contributions made by the urban district councils as hereinafter mentioned and from the payments made by the rural district council pursuant to the provisions of section 69 (Provisions as to sewerage of portion of rural district) of this Act and from other revenue received by the Board under the provisions of this Act.

(2) Twice in each year that is to say prior to the first day of April and the first day of October respectively the Board shall ascertain and determine the amount of money required by them for all expenditure other than capital expenditure during the half year beginning on such first day of April or first day of October as the case may be which shall not be payable out of payments other than those of the constituent authorities and shall apportion the same between the constituent authorities in the proportion which the assessable value of each constituent district bears to the total assessable value of the constituent districts according to the respective general district rate books for the time being in force.

(3) The Board shall issue precepts to the constituent authorities for the amounts so respectively apportioned and the constituent authorities respectively shall within two months from the receipt of such precepts pay to the Board the amounts so apportioned to them respectively.

(4) Such amounts respectively shall be paid by the constituent authorities out of their respective district funds and general district rates which funds and rates are hereby charged with the payment of the same accordingly and the constituent authorities respectively are hereby authorised and required to make and levy any rate that may be necessary for the purposes aforesaid.

(5) If any constituent authority fails to pay any amount so apportioned within the time aforesaid the same shall be a debt due to the Board from such constituent authority and shall bear interest till payment at the rate of four pounds per centum per annum and the Board may in addition to all other remedies proceed for recovery thereof in either of the modes following (that is to say) :—

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(A) The Board may sue the defaulting authority for the amount unpaid in any court of competent jurisdiction :

(B) The Board may by precept empower some officer of the Board to raise by means of a rate to be assessed upon the like property and to be made levied and collected in like manner and with the like powers and authorities as the rate out of which the amount in arrear ought to have been paid by the defaulting authority such sum (the amount to be specified in the precept) as in the opinion of the Board will be sufficient to pay the amount so in arrear and interest and all expenses incurred in consequence of the non-payment thereof and the expenses of levying and collecting such rate and any officer of the Board so empowered shall have the like powers of assessing making levying and collecting rates and of issuing precepts and of requiring officers of the defaulting authority to account as the defaulting authority would have under any Act or otherwise and the officer of the Board so empowered after paying all money payable under the precept shall pay any residue of the money received by him (the amount to be ascertained by the Board) to the defaulting authority.

(6) Any receiver appointed under this Act shall be entitled to receive the amounts so apportioned by the Board to the constituent authorities and in case the Board at any time neglect or refuse to make such apportionment or to recover the same or any part thereof the receiver shall in every such case be entitled to make such apportionment and to exercise all or any of the powers by this section conferred on the Board for recovering the amount so apportioned.

PART V.

MISCELLANEOUS.

91. — (1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon

Inquiries by
Local Go-
vernment
Board.

A.D. 1903. — them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(2) Any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector shall be paid by the Board or the urban district councils or any of them in such manner as the Local Government Board may direct.

Local taxation return.

92. The Board shall be deemed to be a local authority within the meaning of the Local Taxation Returns Act 1860.

Powers to apply to Parliament.

93. Where in the judgment of the Board it is expedient for the Board to apply to Parliament for the repeal amendment or extension of any Act for the time being relating to or affecting the Board or for any alteration or extension of their powers (including the grant of new powers) or otherwise in respect of any matter for the extension improvement of or in connection with their undertaking they may pay the costs and expenses attending such application as taxed by the taxing officer of the House of Lords or of the House of Commons out of their revenues as part of their working expenses.

No expenses in relation to any such application shall be paid as aforesaid unless incurred in pursuance of a resolution passed at a meeting of the Board by an absolute majority of the whole number of the Board after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in two newspapers published or circulating in the districts such notice to be in addition to the ordinary notices required for summoning such meeting.

No further expense shall be incurred or paid as aforesaid after the deposit of the Bill unless the propriety of the promotion of the Bill shall be confirmed by such absolute majority at a further meeting of the Board to be held in pursuance of a similar notice not less than fourteen days after the deposit of the Bill in Parliament and shall have received the approval of the Local Government Board. The Board may oppose any Bill in Parliament which in their judgment it is expedient in the interests of their undertaking to oppose and may pay the cost and the expenses attending such opposition as taxed by the taxing officer of the House of Lords or

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of the House of Commons out of their revenues as part of their A.D. 1903.
working expenses.

94. The Board may take hold and use any licence or authority (not being exclusive) under any letters patent for the use of any invention relative to the disposal of sewage. Power to hold licences under letters patent.

95. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto including the costs charges and expenses preliminary and of and incidental to the opposition of the urban district council of Nantyglo and Blaina to the Bill for this Act shall be taxed by the taxing officer of the House of Lords or of the House of Commons and such costs charges and expenses shall in the first instance be paid by the constituent authorities out of any of their funds or rates in the proportion which the assessable value of each constituent district bears to the total assessable value of the constituent districts according to the respective general district rate books for the time being in force but shall be repaid to the constituent authorities by the Board out of the moneys to be borrowed by them under the powers of this Act. Costs of Act.

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